

Policy Title: Building Permits

Policy Number: Part 7, Planning and Land Use; Chapter 3, Permits; Section 4

Type of Policy: Regulatory

Adopting Resolution: CC15-311

References: Jefferson County Zoning Resolution; Jefferson County Land Development Regulation; the current Jefferson County Building Codes and Supplements; Resolutions CC77-79, CC81-917, CC82-868, CC85-1087, CC86-13, CC86-90, CC88-724, CC91-155, CC95-370, CC95-705, CC04-432, CC05-390, CC07-332, CC14-060

Effective Date: August 18, 2015

Adoption Date: August 18, 2015

Administrative Revision Date: November 5, 2019

Policy Custodian: Planning and Zoning Division

Purpose: To establish procedures for review and approval of building permit applications, and related inspections of the buildings.

- A. Building Permits: The following types of reviews shall comply with the standards and criteria set forth below:
1. One and Two-Family Dwellings, and Accessory Buildings (Accessory buildings must be accessory to an existing dwelling and/or use on the same site. Examples include detached garages, barns, storage shed, etc.).
 2. Remodeling of or Additions to existing One and Two-family dwellings.
 3. Remodeling of Existing Accessory Buildings (Accessory buildings must be accessory to an existing dwelling and/or use on the same site.).
 4. Multi-Family Dwellings and Nonresidential Buildings.
 5. Remodeling of or Additions to Existing Multi-Family and Nonresidential Buildings.
 6. Move and Set of Structures.
- B. Submittal Requirements
1. Two copies of each submittal requirement, unless otherwise determined by the Planning and Zoning Division and/or the Division of Building Safety, shall be submitted for all permits.

2. Submittal Requirements for Building a New Residence or Accessory Structure in a Platted Subdivision and Only One Lot is Involved, Building or Remodeling a Structure in a Platted Subdivision Where Multiple Lots, Portions of Several Platted Lots or a Minor Amendment is Involved, and Building or Remodeling a Structure Located on Metes and Bounds Property (Property Located Outside a Platted Subdivision) or on a Portion of One Platted Lot.
 - a. Site Plan or Survey in accordance with the following:
 - 1) Properties under 15 acres drawn to 1'=10'; 1'=20'; 1'=30'; 1"=40'; or 1"=50'.
 - 2) Properties over 15 acres drawn to 1"=100' or 1"=200'.
 - 3) The entire boundaries and dimensions of the lot, including the area of the lot or parcel in acres or square footage
 - 4) The scaled outline of the proposed structure relative to all property lines and any existing structures on the lot (include foundation location, eaves, decks, patios, cantilevers, etc.).
 - 5) Setbacks of the structure, measured perpendicular from the property line to the wall, foundation, decks, balcony, or any other protrusion extending from the wall or foundation. In some cases eaves, roof overhangs and fireplaces may protrude into the required setback when allowed by the current Jefferson County Building Codes and Supplements.
 - 6) Existing easements of record.
 - 7) Existing building envelope(s) and no-build areas, if established on the recorded plat.
 - 8) The location, width and names of all adjacent and proposed street/road rights-of-way and existing public improvements within.
 - 9) The building address as assigned by the Addressing Section.
 - 10) North arrow and scale used.
 - 11) Legal description of the property. A survey of the property shall be required for building permits on (i) portions of lots, (ii) parcels with a metes and bounds legal description, and (iii) parcels with an aliquot legal description.
 - b. Building Permit Application Form filled out completely and accurately by the applicant with specific information on the purpose line.

- c. Document from the appropriate water and sanitation district stating that public water and sewer service will be provided to the property or structure, or a copy of a well permit.
 - d. Documents from the Jefferson County Public Health that verify the suitability of the existing or proposed onsite wastewater treatment system as appropriate for the proposed construction.
 - e. Evidence of proof of access showing that there is access to the site in accordance with the requirements of the Jefferson County Zoning Resolution.
 - f. Any other requirements established by the Zoning Resolution and/or Land Development Regulation (including without limitation defensible space, driveway engineering, access permits, plat note restrictions and improvement location certificates) shall be met.
 - g. Complete construction plans as required by the Division of Building Safety along with the other documents required herein.
 - h. A copy of the recorded deed showing current ownership of the lots involved. A copy of a deed recorded prior to May 5, 1972 showing the identical legal description as shown on the current owner's deed, or documentation that the current deed describes the same property as the pre-May 5, 1972 deed. (This is to prove that the parcel was created prior to the passage of 1972 Colorado State Senate Bill 35 and meets minimum area requirements for the applicable zone district).
3. Submittal Requirements for Multifamily Dwellings and Nonresidential Buildings in a Platted Subdivision and only One Lot is Involved, Building or Remodeling a Structure in a Platted Subdivision Where Multiple Lots Portions of Several Platted Lots or a Parcel Enlargement Involved, and Building or Remodeling a Structure Located on Metes and Bounds Property (Property Located Outside a Platted Subdivision) or on a Portion of One Platted Lot.
- a. Site Plan or Survey in accordance with the following:
 - 1) Properties under 15 acres drawn to 1'=10'; 1'=20'; 1'=30'; 1"=40'; or 1"=50'.
 - 2) Properties over 15 acres drawn to 1"=100' or 1"=200'.
 - 3) The entire boundaries and dimensions of the proposed building site with appropriate ties to existing land corners and land lines, including the area of the lot or parcel in acres or square footage.

- 4) The scaled outline of the proposed structure relative to all property lines and any existing structure on the lot (include foundation location, eaves, decks, patios, cantilevers, etc.).
 - 5) Setbacks of the structure, measured perpendicular from the property line to the wall, foundation, decks, balcony, or any other protrusion extending from the wall or foundation. In some cases eaves, roof overhangs and fireplaces may protrude into the required setback when allowed by the current Jefferson County Building Codes and Supplements.
 - 6) Existing easements of record.
 - 7) Existing building envelope(s) and no-build areas, if established on the recorded plat.
 - 8) The location, width and names of all adjacent and proposed street/road rights-of-way and existing public improvements within.
 - 9) The building address as assigned by the Addressing Section
 - 10) North arrow and scale used.
 - 11) If applicable, a Site Plan in compliance with the Site Development Plan process identified in the Jefferson County Zoning Resolution shall be provided before a building permit can be issued. The Site Plan shall include parking showing proposed driveway(s), sizes and location(s), layout of individual parking spaces (numbered). Other documents related to the Site Development Plan process including a Landscape Plan, Lighting Plan, Architectural Elevations and any other related documents shall be provided to the Planning and Zoning Division at the time of building permit review.
 - 12) Legal description of the property. A survey of the property shall be required for building permits on (i) portions of lots, (ii) parcels with a metes and bounds legal description, and (iii) parcels with an aliquot legal description.
- b. Building Permit Application Form filled out completely and accurately by the applicant with specific information on the purpose line.
 - c. Document from the appropriate water and sanitation district stating that public water and sewer service will be provided to the property or structure, or a copy of a well permit, and documents from Jefferson County Public Health that verify the suitability of the existing or proposed onsite wastewater treatment system as appropriate for the proposed construction.

- d. Evidence of proof of access showing that there is access to the site in accordance with the requirements of the Jefferson County Zoning Resolution.
- e. Any other requirements established by the Zoning Resolution and/or Land Development Regulation (including access permits, plat note restrictions and improvement location certificates) shall be submitted and/or met as part of the building permit process. Contact the Jefferson County Planning and Zoning Division to determine if the Platting requirement of the Jefferson County Land Development Regulation has been satisfied.
- f. Complete construction plans as required by the Division of Building Safety along with the other documents required herein.
- g. A copy of the current owners recorded deed showing ownership of the specific lots involved.

C. Access Permits

1. The Planning and Zoning Division shall issue the access permits for all new driveways or any proposed modifications to an existing driveway which serves as access to a County dedicated or maintained street or road. Driveway culverts may be required. Inspections of such driveways or proposed modifications shall be completed by the Road and Bridge Division.
2. The applicant shall submit an application for an access permit to the Planning and Zoning Division. For new driveways connecting to a County dedicated or maintained street or road, the applicant shall provide a scaled site plan showing the proposed driveway connection. This permit only addresses the access cut for the first 15' for streets/roads or 25' for an arterial street/road. The appropriate Road and Bridge District shop must be contacted 72 hours before construction begins.
3. The Planning and Zoning Division may inspect proposed driveway connections onto collector and arterial streets/roads to ensure appropriate separation between driveways has been met and in compliance with Land Development Regulations.
4. If required, the property owner shall install a driveway culvert. The minimum culvert size shall be a 15-inch diameter corrugated metal pipe (16-gauge). This culvert size may be increased with the approval of the Road and Bridge Division to fit a particular field situation.
5. The driveway must be graded such that no surface water from the drive enters onto the adjacent roadway and shall not alter the cut/fill slopes such as to endanger lateral stability.

6. The culvert shall extend two feet on both sides of the driveway. These restrictions apply unless otherwise approved by the Road and Bridge Division. Installation shall not be detrimental to the existing County street/road. The culvert shall be installed with a 4-inch minimum depth granular material over the pipe.
7. Driveway inspection must be completed by the Road and Bridge Division prior to Certificate of Occupancy being issued.
8. The mailbox post is to be installed at least 2' behind the roadside ditch flowline and cantilevered to the street/road shoulder to meet Post Office requirements. This is required to facilitate the maintenance of the roadside ditch by the County.
9. When the lot has an existing curb and gutter across its frontage, an access permit is not required unless the curb is to be removed or altered which requires an approval from the Highway and Transportation Division.
10. All concrete driveways shall terminate at the property line when accessed from a street/road that does not have curb and gutter. The property owner may place hot bituminous paving or gravel surface between the concrete driveway and County street/road.
11. State Highway Access Permit Requirements: In addition to the Access Permit requirements listed in C, State Highway Access Permits require the following:
 - a. The Colorado Department of Transportation shall issue an access permit for all new driveways or any proposed modification to an existing driveway that serves as access to a State Road. Submit State permit and approved plan along with building permit application to the Planning and Zoning Division.
 - b. The Planning and Zoning Division shall review driveway locations for all new driveways or any proposed modification to an existing driveway, which serves as access to a County street/road.
 - c. Submit two plans for access review to Planning and Zoning Division prior to Building Permit application. (Only required if the access location has not been previously approved by the Planning and Zoning Division through the Plat, Site Development Plan or Exemption process.)

D. Storm Drainage Requirements

1. A drainage study will be required if any of the following three conditions are met.
 - a. The increase in impervious area on the site is greater than 10,000 square feet.
 - b. Alterations or modifications are made to irrigation ditches or any existing drainages.

- c. If the property is in a floodplain overlay zone. The study shall be in conformance with the Jefferson County Zoning Resolution and Land Development Regulation. Contact the Planning and Zoning Division for drainage study criteria and guidelines.
 - 2. Overlot grading shall be performed in such a manner that no damage will be caused to other property by surface drainage from the subject property.
 - 3. The owner or contractor shall not alter the grade or fill any natural drainage ways, drainage swales, or drainage easements without the approval of the Planning and Zoning Division.
 - 4. The path of flow across and off of the subject property from any existing culvert which discharges onto the subject property shall not be altered without the approval of the Planning and Zoning Division. No such culvert shall be moved without the approval of the Planning and Zoning Division and the owners of any real property directly affected thereby.
- E. Improvement Location Certificate or Survey Requirements upon Completion of Concrete/Foundation Placement and Prior to Inspection for a Rough Frame.
- 1. An Improvement Location Certificate (ILC) or survey shall be required for following conditions (for purposes of this section Plains area and Mountain area shall have the definition set forth in the Jefferson County Zoning Resolution):
 - a. Lot size is less than 8,000 square feet in Plains areas or 1 acre in Mountain areas;
 - b. Proposed setbacks of 5 feet or less in Plains areas, or 10 feet or less in Mountain areas;
 - c. Lots where a proposed setback is less than 3 feet in Plains areas or 5 feet in Mountain areas from the required minimum setback for the applicable zone district;
 - d. Hazardous site conditions exist (such as geological, floodplain);
 - 2. The ILC or survey must show the adjacent structure(s) when the zone district specifies a minimum separation between buildings and the actual building coverage when the zone district specifies a maximum building coverage for the individual lot.
 - 3. The ILC or survey should be prepared immediately after concrete/foundation placement. The ILC or survey must be provided to the Planning and Zoning Division prior to the applicant requesting a Division of Building Safety inspection for a rough frame.

F. Division of Building Safety Requirements

1. All plan reviews and examinations performed by this Division are non-structural in nature and the issuance of a permit does not signify that the structural elements of any building have been reviewed, calculated, or in any manner approved. Structural design should be performed by a Colorado State licensed engineer or architect and may be required prior to acceptance of the plans as per the current Jefferson County Building Codes and Supplement.
2. All field inspections performed by this Division are non-structural in nature and are based solely on conditions visible at the time of inspection. This Division may require written confirmation by a Colorado State licensed engineer or architect regarding the installation and size of any structural element within any building if deemed necessary by the field inspector.
3. Two complete sets of building plans consisting of a minimum of: Engineered Foundation plans, floor plans, four elevations, typical wall section and stair details; together with Energy Compliance Information and Snow Load and Wind Load design information giving the elevation of the site above sea-level, and all Jefferson County Public Health and Planning and Zoning Division approvals are required by the Division of Building Safety for its approval. (Zoning approvals expire sixty days after signature by zoning personnel. The Certificate of Water and Sewer Availability Form expires one year from the signature date.) Additional technical data will be required when:
 - a. Roof framing or wall framing is "other than standard" construction or any other construction not conforming to the requirements of the current Jefferson County Building Codes and Supplements.
 - b. Any structural element affecting the integrity of the building including beams sizes, spans and loading must be confirmed.

G. Additional Requirements for Nonresidential Development

1. All plans and specifications submitted in connection with the application for a permit shall be prepared and stamped by an engineer or architect licensed by the State of Colorado, as per the current Jefferson County Building Codes and Supplements.
2. A ground snow load and wind load design criteria giving the elevation of the site above sea level shall be submitted, unless the necessary information is provided on the building plans.
3. After receipt of all the above data, please allow seven (7) days for the processing of permits for new construction.

H. Move and Set Requirements for Structures

1. No building, structure or improvement shall be moved into or within the unincorporated portion of Jefferson County until a Building Permit for the Move & Set of structures has been issued by the Division of Building Safety.
2. No building, structure or improvement shall be transported on any County road or highway until and unless a transport permit has been obtained from the Jefferson County Transportation and Engineering Division.
 - a. The applicant shall submit the following to the Transportation and Engineering Division:
 - 1) The dimensions of the structure to be moved.
 - 2) The desired route to be taken and applicable fee.
 - b. The Transportation and Engineering Division may issue the applicant a transport permit when the date of the move is established and if the structure is to be transported on or across a County street or road. If the applicant is denied a transport permit by Transportation and Engineering Division, the applicant may, within 30 days, appeal such denial to the Jefferson County Board of Adjustment.
 - c. If the structure is to be moved on or across a State or Federal Highway, a permit must be obtained from the State Highway Department.
3. Two copies of each of each of the following submittal requirements, unless otherwise determined by the Planning and Zoning Division and/or the Division of Building Safety, shall be submitted.
 - a. Pre-inspection Form.
 - b. A completed Jefferson County Building Permit application for move and set of structures.
 - c. Verification of legal address from the Addressing Section.
 - d. Document(s) from the appropriate water and sanitation district stating that public water and sewer service will be provided to the property or structure, or a copy of a well permit, and documents from the Jefferson County Public Health that verify the suitability of the existing or proposed onsite wastewater treatment system as appropriate for the proposed construction.
 - e. Certificate of Taxes Paid showing that past and present taxes have been paid on the building or structure to be moved (applicable only if the building to be moved is located within Jefferson County).

- f. Site plan drawn to scale showing property lines and location of structure.
 - g. Foundation plans stamped by a Colorado Engineer or Architect.
 - h. Height of structure.
 - i. Floor plans drawn to scale.
 - j. Elevation above sea level.
 - k. As-built drawings showing any modifications required to meet current codes and stamped by a Colorado Engineer or Architect.
- I. State Division of Water Resources, Jefferson County Public Health, and Appropriate Water and Sanitation District Requirements
- 1. New One and Two-Family Dwellings, Additions or Move and Set Dwellings.
 - a. Dwelling to be served by private water and onsite wastewater treatment system.
 - 1) A copy of a well permit from the State Division of Water Resources that corresponds to the uses for which the building permit will be issued. A water source other than a well or water district must be approved by Jefferson County Public Health.
 - 2) The applicant shall submit documents from the Department of Health and Environment that verify the suitability of the existing or proposed onsite wastewater treatment system as appropriate for the proposed construction.
 - 3) After the above steps have been completed, take these permits to the Planning and Zoning Division along with the other documents required herein for approval (expired permits will not be accepted unless accompanied by proof of installation and/or a copy of the well log).
 - b. Dwelling to be served by public water and public sewer.
 - 1) Determine from the Planning and Zoning Division if a blanket Certificate of Water and Sewer Availability has been issued for the subdivision in which the applicant proposes to build. If a blanket certificate has been issued, a new Certificate of Water and Sewer Availability is not required.
 - 2) If no blanket Certificate of Water and Sewer Availability has been issued, obtain a blank Certificate of Water and Sewer Availability from the Planning and Zoning Division. Contact the appropriate water and sanitation districts for review and signature of the Certificate Take the

signed Certificate to the Planning and Zoning Division along with the other documents required herein for approval.

- c. Dwelling to be served by public water and onsite wastewater treatment system.

- 1) The applicant shall submit a document from the appropriate water district stating that public water service will be provided to the property or structure, along with documents from Jefferson County Public Health that verify the suitability of the existing or proposed onsite wastewater treatment system as appropriate for the proposed construction.

- d. Dwelling to be served by private water and public sewer.

- 1) The applicant shall submit a copy of a well permit that corresponds to the uses for which the building permit will be issued with a condition of use that specifically allows the wastewater to be discharged to a public sewer system. A water source other than a well must be approved by Jefferson County Public Health. The applicant shall also submit a document from the appropriate sanitation district stating that public sewer service will be provided to the property or structure.

- 2. Additional Requirements of Jefferson County Public Health for Multiple-Family Dwellings and Nonresidential Buildings.

- a. New or Remodeled Structures Requiring Plan Review by Jefferson County Public Health. The following types of facilities must receive plan review and approval by Jefferson County Public Health prior to issuance of a building permit: restaurants, retail food stores, child care centers, private schools, camps, drug and alcohol rehabilitation centers, penal institutions, mobile home parks, public and semi-public swimming pools.

- b. Lots developed with onsite wastewater treatment systems that do not meet minimum lot size in accordance with the Onsite Wastewater Treatment System Regulation of Jefferson County will require Board of Health Approval.

- 3. Restrictive covenants or protective covenants, denominated as such and set forth on the face of a recorded plat, shall not be enforced through the building permit review process and shall not be the basis for the denial of a building permit.